

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY----- J{
MILTON THOMAS,

SUMMONS

Plaintiff,

Index No.:

-against-

The Basis of Venue is:
Location of Incident

THE CITY OF NEW YORK, DETECTIVE DEREK KIELY, Shield# 0372, POLICE OFFICER CATTANI, SERGEANT JOHN FERRARA, DETECTIVE EDWIN HERNANDEZ, DETECTIVE TERRY MILL, and POLICE OFFICERS JOHN DOES # 1-10 (names and number of whom are unknown at present), and other unidentified members of the New York City Police Department,

Plaintiff designates Bronx
County as the place of trial.

Defendants.

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To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your answer, or, if the Verified Complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
January 15, 2016

Yours, etc.



JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, New York City Law Department, 100 Church Street, NY, NY 10007
Det. Derek Kiely, Shield 0372, Narcotics Borough Bronx, 1PP, Rm. 1100, NY, NY 10038
Police Officer Cattani, 42nd Precinct, 830 Washington Ave, Bronx, NY 10452
Det. Edwin Hernandez, Narcotics Borough Bronx, 1 Police Plaza, Rm. 1100, NY, NY 10038
Det. Terry Mill, Narcotics Borough Bronx, 1 Police Plaza, Rm. 1100, NY, NY 10038
Sgt. John Ferrara, Narcotics Borough Bronx, 1 Police Plaza, Room 1100, NY, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

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MILTON THOMAS,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, DETECTIVE DEREK
KIELY, Shield# 0372, POLICE OFFICER CATTANI,
SERGEANT JOHN FERRARA, DETECTIVE EDWIN
HERNANDEZ, DETECTIVE TERRY MILL, and POLICE
OFFICERS JOHN DOES # 1-10 (names and number
of whom are unknown at present), and other unidentified
members of the New York City Police Department,

JURY TRIAL DEMANDED

Defendants.
-----) (

Plaintiff, MILTON THOMAS, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising from
defendants' violations of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section
1983, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United
States Constitution, and the common law and the statutes of the State of New York. On January
18, 2013, at approximately 6:00 a.m., plaintiff Milton Thomas, while lawfully sleeping inside
of his apartment, located at 1285 Washington Avenue, Apartment 9E, Bronx, New York, was
subject to an unlawful seizure, search, detention, false arrest and false imprisonment by the
defendant New York City police officers. Thereafter, the defendant police officers
maliciously prosecuted plaintiff and denied plaintiff the right to due process and the right to a
fair trial. Plaintiff was deprived of his constitutional and common law rights when the
individual defendants unlawfully seized, searched, detained, falsely arrested, falsely imprisoned,
maliciously prosecuted, and denied plaintiff the right to due process and the right to a fair trial in
violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

16. Defendant DETECTIVE TERRY MILL, is and was at all times relevant herein, assigned to the Narcotics Borough Bronx.

17. Defendant DETECTIVE TERRY MILL, is being sued in his individual and official capacity

18. Defendant New York City Police Officers JOHN DOES #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

19. Defendant Police Officers JOHN DOES #1-10 are being sued in their individual and official capacities.

20. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

21. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

22. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

23. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim against the City of New York, in compliance with the Municipal Law Section 50 and testified at a hearing pursuant to General Municipal Law 50-H on September 23, 2014..

24. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

25. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

26. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

27. On January 18, 2013, at approximately 6:00 a.m., plaintiff was lawfully sleeping inside of his apartment, located at 1285 Washington Avenue, Apartment 9E, Bronx, New York.

28. On January 18, 2013, at approximately 6:00 a.m., the individually named defendant police officers unlawfully entered plaintiff's apartment without a lawful warrant, consent, probable cause or any other legal justification for entering the apartment.

29. When the defendants unlawfully entered plaintiff's apartment, he was asleep in the living room.

30. Upon unlawfully entering the apartment, the defendant police officers pointed their firearms directly at plaintiff, and ordered him not to move.

31. A defendant police officer then approached plaintiff in an overly aggressive manner, unlawfully grabbed him in a rough and aggressive manner, and slammed plaintiff onto the ground, without cause or legal justification.

32. The defendant police officers handcuffed plaintiff in an unreasonably tight manner, without probable cause or legal justification.

33. The defendant police officers then retrieved the other occupants of the apartment from the bedrooms where they were sleeping, including plaintiff's 15 year-old-daughter, handcuffed them, and forced plaintiff and the other occupants of the apartment to sit handcuffed on the floor of a room.

34. The defendant police officers unlawfully searched plaintiff's apartment, without a lawful warrant, consent, probable cause or any legal justification.

35. At no time did the defendant police officers find any guns, drugs, or illegal contraband inside the apartment or in plaintiff's possession, custody or control.

36. Defendants did not have an objective factual basis to believe plaintiff committed a crime or violated the law in any way.

37. Nevertheless, after illegally searching the apartment for approximately 30 minutes, the defendant police officers informed plaintiff that he was under arrest.

38. The defendant police officers escorted plaintiff out of the apartment building to an NYPD van parked in front of the building, and transported him to the 42nd precinct against his will.

39. After many hours of being unlawfully detained in a holding cell at the 42nd Precinct, being fingerprinted and photographed, and enduring filthy and inhumane conditions in the holding cell, at approximately 2:00 p.m. on January 18, 2013 defendants transported plaintiff to Bronx Central Booking.

40. An unlawful criminal prosecution was initiated and continued against plaintiff by the individually named defendant police officers because the defendants communicated false, misleading, and incomplete information to the Bronx District Attorney's Office about the officers' basis for arresting plaintiff. Furthermore, the defendant officers signed the criminal court complaint filed against plaintiff in criminal court, under penalty of perjury even though the complaint contained false, misleading and incomplete factual allegations against plaintiff and accused plaintiff of committing crimes that the defendants lacked an objective basis for accusing him of committing.

41. On January 20, 2013, defendants caused legal process against plaintiff to commence when plaintiff was arraigned in Bronx Criminal Court and was falsely charged with several crimes he did not commit.

42. Based upon the false, misleading, and incomplete information provided to the District Attorney's Office by the defendant police officers and sworn to by the defendants in the criminal court complaint, defendants initiated a prosecution against plaintiff on June 9, 2013, and legal process against plaintiff was commenced when plaintiff was arraigned in Bronx Criminal Court and was falsely charged with several crimes.

43. Plaintiff was detained at Bronx Central Booking in a filthy holding cell with numerous individuals charged with violent crimes, until approximately 2:00p.m. on January 20, 2013, when he was arraigned in Bronx Criminal Court.

44. Bail was set by the Court at arraignment, but plaintiff could not immediately post bail and therefore he was remanded into the custody of the New York City Department of Corrections.

45. Plaintiff was detained in the custody of the New York City Department of Correction for approximately five (5) days before he posted bail and was released from custody.

46. Plaintiff was forced to make over ten criminal court appearances to address the false criminal charges that were brought against him, and the criminal prosecution lasted for many months before all criminal charges terminated in plaintiff's favor and were dismissed and sealed on July 7, 2014.

47. Plaintiff was employed by the New York City Housing Authority

("NYCHA") at the time of his arrest and had been employed there for approximately 21 years.

48. Shortly after plaintiff was arrested, the New York City Housing Authority was notified of his arrest, and as a proximate cause of being falsely arrested, NYCHA suspended plaintiff without pay.

49. Thereafter, NYCHA reached a decision, based upon the fact plaintiff was arrested, to terminate plaintiff from his job and to cut off plaintiff's benefits he would have received after he retired from the job, such as his pension or accrue vacation days, amongst other benefits he lost.

50. Plaintiff has not been able to secure another job since he was fired from NYCHA and he has struggled to care for his daughter and take care of himself, without income. The stress and anguish associated with worrying about finances is enormous and has caused plaintiff's health to suffer greatly, both psychologically and physically.

51. Plaintiff has lost a tremendous amount of income as a result of his unlawful arrest and he brings claims for lost wages which will be calculated and provided to defendants after defendants are joined as parties in this matter.

52. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable entry and search of plaintiff's apartment, or the unjustifiable seizure, search, false arrest or false imprisonment of plaintiff, and those officers are liable to plaintiff for failing to intervene to stop their fellow officers unlawful behavior.

53. The unlawful entry and search of plaintiff's apartment, and the unlawful seizure, search, false arrest and false imprisonment of plaintiff by the individually named defendants caused plaintiff to sustain serious physical, psychological and emotional trauma, and lost wages.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment and Fourteenth

Amendment Rights

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff's apartment to be unlawfully entered and searched, and caused plaintiff to be unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, and maliciously prosecuted plaintiff without probable cause in violation of plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

56. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked I through 55 with the same force and effect as if more fully set forth at length herein.

57. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

58. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

59. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Unlawful Search

60. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 59 with the same force and effect as if more fully set forth at length herein.

61. The illegal search of plaintiff's apartment by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

62. Defendants lacked probable cause to search plaintiff's apartment.

63. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

64. Defendants lacked probable cause to search plaintiff.

65. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

66. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which

are therefore responsible for their conduct.

67. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

68. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

69. Plaintiff repeats and realleges paragraphs 1 through 87 as if fully set forth herein.

70. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

71. Defendants commenced and continued a criminal proceeding against plaintiff.

72. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

73. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

74. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

75. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

76. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Denial of Right to Fair Trial

77. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 95 with the same force and effect as if fully set forth herein.

78. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Bronx County District Attorney's Office.

79. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Bronx County District Attorney's Office.

80. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Bronx County District Attorney's Office.

81. In withholding/creating false evidence against plaintiff Bernard Miller, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

82. As a result of the foregoing, plaintiff Bernard Miller, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

83. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

84. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SEVENTH CAUSE OF ACTION

Failure to Intervene

85. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 84 with the same force and effect as if more fully set forth at length herein.

85. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

86. Defendants failed to intervene to halt and/or prevent the unlawful conduct described herein.

87. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

88. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

89. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

90. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

EIGHTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

91. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 90 with the same force and effect as if more fully set forth at length herein.

92. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

JURY DEMAND

93. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Milton Thomas demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
January 15, 2016

Yours, etc.

/s/

JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
January 15, 2016

/s/

Stuart E. Jacobs